

RIGHTS AND LIABILITIES OF THE GOVERNMENT

PROPERTY -> CAPACITY -> VALID CONTRACT -> SUABILITY -> TORT -> PROPERTY PROTECTION

Read the cyan rail from constitutional continuity to the remedy decision tree. Every stage preserves the distinction between public power, special procedure and effective accountability.

00

CONSTITUTIONAL MAP: CAPACITY WITH ACCOUNTABILITY

ARTICLES 294-300

ARTICLE 300A ADJACENT

NO BLANKET IMMUNITY

- 294-297: property allocation
- 298: executive capacity
- 299: mandatory contract form

- 300: named suable government
- 300A: deprivation only by law
- Remedy depends on the wrong

ANSWER LINE: Public power carries special form and procedure, but remains answerable under law.

01

SUCCESSION AT COMMENCEMENT: ARTICLES 294-295

DOMINION / PROVINCES

FORMER INDIAN STATES

LATER REORGANISATION BY STATUTE

Article 294
Dominion assets/rights/liabilities -> Union
Governor's Province -> corresponding State

Article 295
Union if Union-purpose/List nexus
otherwise corresponding State

Later change
reorganisation statute/agreement allocates
assets, debt, staff and proceedings

ANSWER LINE: Succession prevents a constitutional transition from creating an ownership or liability vacuum.

02

OWNERLESS AND MARITIME PROPERTY: ARTICLES 296-297

ESCHEAT

LAPSE

BONA VACANTIA

UNION MARITIME VESTING

ESCHEAT

Property returns for want of lawful heir.

LAPSE

Recognised title/right fails or terminates.

BONA VACANTIA

Ownerless property; location rule with purpose-based proviso.

ARTICLE 297

Specified ocean-bed lands, minerals, things of value and EEZ resources vest in Union.

ANSWER LINE: Article 296 is not acquisition, and Article 297 does not itself state every maritime-zone distance.

03

ARTICLE 298: COMMERCIAL CAPACITY UNDER LEGISLATIVE CONTROL

ANSWER LINE: Article 296 is not acquisition, and Article 297 does not itself state every maritime-zone distance.

03

ARTICLE 298: COMMERCIAL CAPACITY UNDER LEGISLATIVE CONTROL

TRADE / BUSINESS

ACQUIRE-HOLD-DISPOSE

CONTRACTS

FEDERAL PROVISOS

Union and State executive capacity



Appropriate legislature may regulate



Article 14 + statute + appropriation + audit



Article 299 still controls valid commitment

ANSWER LINE: Capacity is broad, legal authority, equality and financial accountability remain.

04

ARTICLE 299: FROM CAPACITY TO VALID COMMITMENT

EXPRESSED IN HEAD'S NAME

EXECUTED ON BEHALF

AUTHORISED PERSON / MANNER

Article 298 capacity



All three Article 299(1) formalities



Valid governmental contract



Article 299(2): no personal liability of head/executant

ANSWER LINE: Bhikraj Jaipuria and Mulamchand treat form as mandatory public policy, not curable etiquette.

05

DEFECTIVE CONTRACT AND SECTION 70 RESTITUTION

NO RATIFICATION / ESTOPPEL CURE

LAWFUL BENEFIT

NON-GRATUITOUS

ENJOYED BY STATE

Article 299 defect -> contract claim fails



Test section 70 independently



B.K. Mondal: benefit-retention illustration



Mulamchand: prove benefit and account for reciprocal gain

ANSWER LINE: Restitution reverses unjust enrichment; it neither validates the bargain nor guarantees its price.

06

ARTICLE 300 AND THE CIVIL-SUIT PROCEDURAL RAIL

CPC 79

CPC 80(1)

CPC 80(2)

LIMITATION 15(2)

CPC 82

PARTY

Union of India / name of State.

NOTICE

Two months before a covered suit.

06

ARTICLE 300 AND THE CIVIL-SUIT PROCEDURAL RAIL

CPC 79 CPC 80(1) CPC 80(2) LIMITATION 15(2) CPC 82

PARTY

Union of India / name of State.

URGENCY

Court leave + reasonable show-cause opportunity.

NOTICE

Two months before a covered suit.

LIMIT / EXECUTION

Exclude required notice time; wait three months before qualifying execution.

ANSWER LINE: Notice and delayed execution structure litigation; they do not create substantive immunity.

07

PRIVATE TORT: SOVEREIGN IMMUNITY NARROWED

P & O VIDYAWATI KASTURI LAL N. NAGENDRA RAO

Colonial divide
sovereign / non-sovereign



Vidyawati (1962)
ordinary vehicle negligence
State vicariously liable



Kasturi Lal
older police-custody immunity
strongly criticised



N. Nagendra Rao (1994)
broad immunity untenable
narrow inalienable residue

ANSWER LINE: Ask function, duty, breach, causation, damage and employment nexus - never begin with blanket immunity.

08

CONSTITUTIONAL COMPENSATION AND PERSONAL RESPONSIBILITY

RUDUL SAH NILABATI BEHERA D.K. BASU PARALLEL REMEDIES

Established Fundamental-Right violation



Articles 32/226 public-law relief



Compensation + preventive directions



Civil / criminal / disciplinary / personal routes may coexist

ANSWER LINE: Writ compensation vindicates rights; it does not universally replace ordinary remedies.

09

ARTICLE 300A: FROM FUNDAMENTAL RIGHT TO LEGALITY GUARANTEE

44TH AMENDMENT EVERY PERSON OUTSIDE PART III AUTHORITY OF LAW

Before amendment
Articles 19(1)(f) + 31



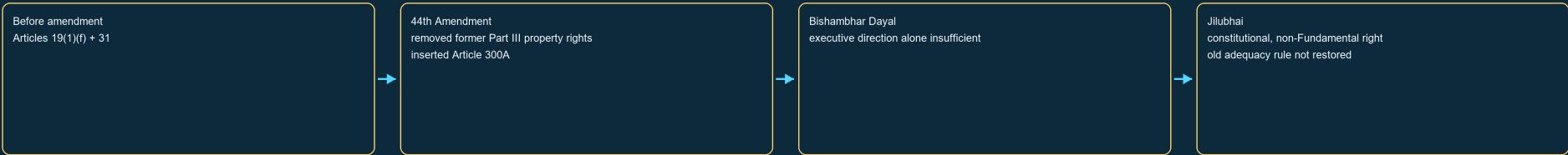
44th Amendment
removed former Part III property rights
inserted Article 300A



Bishambhar Dayal
executive direction alone insufficient



Jilubhai
constitutional, non-Fundamental right
old adequacy rule not restored



ANSWER LINE: The Forty-fourth Amendment reduced remedial status, not the rule against executive confiscation.

PROPERTY TAXONOMY, PURPOSE AND COMPENSATION

ACQUISITION REQUISITION REGULATION UNAUTHORISED OCCUPATION

ACQUISITION
Ordinarily permanent transfer/extinguishment, law and public purpose.

REQUISITION
Ordinarily temporary possession/use under statute.

REGULATION
Controls use; not automatically deprivation.

CASES
K.T. Plantation: no confiscation/illusory compensation. Vidya Devi: no occupation shortcut.

ANSWER LINE: Article 300A does not guarantee market value in every case, but rejects lawless or colourable taking.

UPSC REMEDY DECISION TREE AND FINAL FIREWALL

CONTRACT RESTITUTION PRIVATE TORT PUBLIC LAW PERSONAL LIABILITY

VALID CONTRACT
Article 299 + breach -> contract/arbitration.

DEFECTIVE FORM
Section 70 only if independent ingredients proved.

CIVIL / RIGHTS WRONG
Private tort or constitutional compensation; do not collapse.

PROPERTY / OFFICIAL
Article 300A review; personal criminal/disciplinary/civil route if proved.

ANSWER LINE: Identify wrong -> source -> defendant -> proof -> forum -> relief -> overlap and double-recovery limit.

OPTIONAL ENRICHMENT: REORGANISATION, PROCUREMENT, ARBITRATION AND REFORM

REORGANISATION

- Statute/instrument allocates assets
- Debt, staff, records and proceedings
- No universal constitutional formula

PROCUREMENT / ARBITRATION

- Fair criteria and reasoned award
- Article 299-compliant execution
- Arbitration cannot cure absent authority

STATE-TORT REFORM

- Narrow core-function exceptions
- Operational liability and evidence duties
- Official contribution and no double recovery